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CASE NAME: Melissa Clark v. University of La Verne

Cross-Defendant Etiwanda School District's Demurrer to the Cross-Complaint

TENTATIVE RULING

The Court SUSTAINS Cross-Defendant Etiwanda School District's Demurrer to the Cross-Complaint. The Court will hear from the parties whether leave to amend should be granted.

Cross-Defendant Etiwanda School District is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a higher education dispute. On February 7, 2024, plaintiff Melissa Clark (Plaintiff) filed this action. On July 3, 2024, Plaintiff filed the First Amended Complaint (FAC) against defendants University of La Verne, Devorah Lieberman, Karop Janoyan, Leo Berrera, Kathy Elderson, Maria Garcia, Lily Damon, Kimberly A. White-Smith, Victoria Escoffery-Runnels, and Does 1 through 50, alleging causes of action for breach of contract (two counts), negligence (NIED), intentional infliction of emotional distress (IIED), and exemplary damages.

On November 13, 2024, following the Court sustaining Defendant University's demurrer to the Third and Fourth Causes of Action of the FAC with leave to amend, Plaintiff filed the operative Second Amended Complaint (SAC) against defendants University of La Verne (University), Devorah Lieberman, Karop Janoyan, Leo Berrera, Kathy Elderson, Maria Garcia, Lily Damon, Kimberly A. White-Smith, Victoria Escoffery-Runnels, and Does 1 through 50, alleging the same causes of action for breach of contract (two counts), negligence (NIED), intentional infliction of emotional distress (IIED), and exemplary damages.

On April 14, 2026, University of La Verne (University) filed a cross-complaint against cross-defendant Etiwanda School District (Etiwanda) and Roes 1 to 20, alleging causes of action for implied/equitable indemnity and contribution.

On April 14, 2026, Etiwanda demurred to University's Cross-Complaint. On July 10, 2026, University opposed the Demurrer. On July 16, 2026, Etiwanda replied to University's Opposition.

LEGAL STANDARD

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc., § 422.10; see *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 (*Donabedian*).) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Id.* at pp. 993-994.)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian*, *supra*, 116 Cal.App.4th at p. 994.) No other extrinsic evidence can be considered. (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881 [error for court to consider facts asserted in memorandum supporting demurrer]; see also *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds in *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 [error to consider contents of release not part of court record].)

A demurrer can be utilized where the “face of the complaint” itself is incomplete or discloses some defense that would bar recovery. (*Guardian North Bay, Inc. v. Superior Court* (2001) 94 Cal.App.4th 963, 971-972.) The “face of the complaint” includes material contained in attached exhibits that are incorporated by reference into the complaint, or in a superseded complaint in the same action. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94; see also *Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505 [“[W]e rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits”].)

A demurrer can only be sustained when it disposes of an entire pleading, cause of action, or affirmative defense. (See Cal. Rules of Court, rule 3.1320, subd. (a); *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046-1047.)

PRELIMINARY ISSUES

Etiwanda's Demurrer incorrectly attributes the quotation “[i]mplied contractual indemnity is predicated on the indemnitor's breach of contract” to *Prince v. Pacific Gas & Electric Co.* (2009) 45 Cal.4th 1151 (*Prince*), but that quotation cannot be found in that case. (Demurrer, 4:9.) Etiwanda's Reply also misquotes *Prince* twice by saying contractual indemnity “is simply a form of equitable indemnity” when *Prince* actually reads, “contractual indemnity is now viewed simply as ‘a form of equitable indemnity’”. (Reply, 6:10, 8:21; *Prince*, *supra*, 45 Cal.4th at p. 1157.) Etiwanda further incorrectly attributes the quotation that equitable indemnity “is a restitution concept which attempts to shift loss from one tortfeasor who has been compelled to pay damages to another tortfeasor who should bear all or part of the loss” to *Stop Loss Ins. Brokers, Inc. v. Brown & Toland Medical Group* (2006) 143 Cal.App.4th 1036, but no such language is found in that case. (Reply, 7:26-8:1.) The Court will discuss these matters further with Etiwanda's counsel at the hearing on this Demurrer.

REQUESTS FOR JUDICIAL NOTICE

The Court GRANTS Etiwanda's requests for judicial notice. (Evid. Code, § 452, subd. (d).) However, the Court takes judicial notice only as to “the existence, content and authenticity of public records and other specified documents” and the legal effect of the documents' language when that effect is clear. It does not take judicial notice of the truth of the factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400; *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265.)

DISCUSSION

Meet and Confer

The Court finds Etiwanda's efforts to meet and confer before bringing this Demurrer sufficient. (Miller Decl., ¶ 2, subd. (a); Code Civ. Proc., § 430.41, subd. (a).)

Entire Complaint

"Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board, in accordance with Chapters 1 and 2 of Part 3 of this division." (Gov. Code, § 945.4.)

Etiwanda demurs to the entire Cross-Complaint on the ground that it fails to state sufficient facts and is barred by Government Code section 945.4 for failure to present a timely government tort claim. Etiwanda argues that a written claim must precede any suit for money or damages against a public entity, that failure to allege compliance subjects the pleading to a general demurrer, and that timely presentation is a substantive element of the claim rather than a mere limitations hurdle. Under Government Code section 901, Etiwanda contends an equitable indemnity claim accrues when the defendant is served with the complaint giving rise to the indemnity claim. Etiwanda contends University was served with the initial complaint on March 15, 2024, so the six-month presentation period closed on September 15, 2024; and even if the amended complaints reset the clock, the time to present a late claim expired on May 13, 2025. Etiwanda argues that because University never presented a claim and never alleged compliance with Government Code sections 905, 911.2, and 945.4, the entire Cross-Complaint is subject to general demurrer.

In opposition, University concedes it did not file a government claim but argues this omission is not fatal because its causes of action did not begin to accrue until October 28, 2025, which is the date it received Plaintiff's discovery responses. University contends Plaintiff's Complaint alleged no wrongdoing by Etiwanda, so University was not on notice that Etiwanda's conduct could expose it to liability until discovery revealed Plaintiff's contention that Etiwanda lied about her performance and "set her up" to fail. University invokes the late-discovery and equitable tolling doctrines, arguing that accrual was delayed and that it therefore has until October 28, 2026 to present a claim or seek leave to file a late claim under Government Code section 911.4. University further argues that contract-based claims carry a one-year presentation period and that a contractual indemnity claim does not accrue until the indemnitee suffers a loss through payment of an adverse judgment or settlement.

In reply, Etiwanda contends that University's admission that it never presented a claim is fatal and that University improperly asks the Court to substitute a discovery rule the Legislature rejected for Government Code section 901's express accrual rule. Etiwanda argues that Government Code section 901 fixes accrual at service of the complaint, not at payment, settlement, or later discovery of supporting facts. Etiwanda contends the Cross-Complaint is untimely under every theory: even under a one-year contract period any claim was due by March 13, 2025, and even accepting University's October 2025 accrual date, the six-month period applicable to a cross-complaint relating to Plaintiff's personal-injury claims expired by April 2026. Finally, Etiwanda argues that University conflates the six-month claim-presentation deadline under section 911.2 with the one-year outer limit for seeking leave to file a late claim under section 911.4, so the Cross-Complaint remains barred as a matter of law.

The Court finds the entire Cross-Complaint subject to demurrer for failure to state facts sufficient to constitute a cause of action. The law is clear that before a suit for damages may be filed against a public entity, the claimant must present a timely written claim to the public entity and the claim must have been acted upon by the board or deemed rejected before the claimant may file suit. (Gov. Code, § 945.4; *Munoz v. State of Cal.* (1995) 33 Cal.App.4th 1767, 1777 (*Munoz*).) "[A] plaintiff must allege facts demonstrating or excusing compliance with the claim presentation requirement. Otherwise, his complaint is subject to a general demurrer for failure to state facts sufficient to constitute a cause of action." (*State of California v. Superior Ct.* (2004) 32 Cal.4th 1234, 1243.) The Cross-Complaint does not allege compliance with the claims presentation requirement. (See generally, Cross-Complaint.) University concedes that it did not present its claims to Etiwanda, and still has not presented its claims, before filing this action. (Opp., 2:10-11.) The failure to comply with the claims presentation requirement is fatal to University's Cross-Complaint.

Moreover, time for University to present a claim for equitable indemnity has expired. “[A] defendant’s equitable indemnity claim against a governmental entity accrues only upon service of the complaint as to which indemnity is sought.” (Centex Homes v. Superior Ct. (2013) 214 Cal.App.4th 1090, 1106 (Centex Homes); see Gov. Code, § 901.) Also, “an equitable indemnity cause of action against a public entity accrues from the service of the complaint ‘giving rise to the defendant’s claim for indemnity.’ [Citation.]” (Id. at p. 1107.) Plaintiff Melissa Clark’s claims against University have been essentially the same throughout this entire action. The original Complaint, served on University on March 15, 2024, alleges causes of action for breach of contract, negligence, intentional infliction of emotional distress, fraud, and defamation, all arising from Plaintiff’s termination from University’s education program. (See Complaint, ¶ 8, Attachment BC2; Request for Judicial Notice, Ex. 1.)

The First Amended Complaint, served on University on July 3, 2024, alleges two causes of action for breach of contract, negligence, and intentional infliction of emotional distress, all arising from Plaintiff’s termination from University’s education program. (See generally, First Amended Complaint; see Proof of Service (7/3/24).) The Court also notes that the caption page of the First Amended Complaint identifies Etiwanda as a defendant, and that Etiwanda is specifically mentioned in the First Amended Complaint. (First Amended Complaint, pp. 1, 4, 6.)

The operative Second Amended Complaint^[1] alleges two causes of action for breach of contract, negligence, and intentional infliction of emotional distress, all arising from Plaintiff’s termination from University’s education program. (See generally, Second Amended Complaint.) The Second Amended Complaint also mentions Etiwanda multiple times throughout. (Second Amended Complaint, pp. 1-2, 5-6.) The claims for which University seeks indemnity from Etiwanda have been alleged since the beginning of this action. Therefore, the claim filing deadline began to run from the date University was first served in this action. Alternatively, even if calculating based on the Second Amended Complaint, University’s claim would still be barred based on the Second Amended Complaint since University did not file its Cross-Complaint until approximately 17 months after receiving the Second Amended Complaint. (See Gov. Code, § 911.2, subd. (a) [six months for tort claims and one year for contract claims].)

Furthermore, University’s claims of delayed discovery are unavailing. Case law expressly holds that delayed discovery does not apply to equitable indemnity claims. (Greyhound Lines, Inc. v. Cnty. of Santa Clara (1986) 187 Cal.App.3d 480, 485; Centex Homes, supra, 214 Cal.App.4th at p. 1106.) Also, as noted above, the First and Second Amended Complaints both expressly mention Etiwanda. (First Amended Complaint, pp. 1, 4, 6; Second Amended Complaint, pp. 1-2, 5-6.)

With respect to whether to grant leave to amend, Cross-Complainant requested leave to amend but did not offer any facts or any indication as to how it might be able to amend to overcome its apparent non-compliance with pre-suit claim submittal requirements, nor any authority as to whether or how a party can overcome such non-compliance after filing suit.

Accordingly, the Court SUSTAINS Etiwanda’s Demurrer to the entire Cross-Complaint.

First Cause of Action – Implied/Partial Indemnity

Equitable indemnity applies where independent actions or multiple tortfeasors are each a proximate cause of a single indivisible injury. Liability among such tortfeasors “may be apportioned on a comparative negligence basis.” (Am. Motorcycle Assn. v. Superior Ct. (1978) 20 Cal.3d 578, 583.) Equitable indemnity includes a joint legal obligation to another. (Prince v. Pac. Gas & Elec. Co. (2009) 45 Cal.4th 1151, 1158.) Implied contractual indemnity is a form of equitable indemnity. (Prince v. Pac. Gas & Elec. Co. (2009) 45 Cal.4th 1151, 1157.) To state a claim for equitable indemnity, the plaintiff must allege facts demonstrating fault on the part of the indemnitor and damages to the indemnitee for which the indemnitor is equitably responsible. (C.W. Howe Partners Inc. v. Mooradian (2019) 43 Cal.App.5th 688, 700.)

Etiwanda demurs to the Cross-Complaint’s First Cause of Action for implied/partial indemnity on the grounds that it fails to state facts sufficient to constitute a cause of action and on the grounds that it is uncertain. Etiwanda argues that a party cannot maintain equitable indemnity over a purely contractual dispute because equitable indemnity is a tort-based doctrine that apportions loss among tortfeasors jointly and severally liable to the injured plaintiff and does not apply where no tort duty exists. Etiwanda contends that, to the extent the claim seeks implied contractual indemnity, it is predicated on the indemnitor’s breach of contract, yet University alleges only in conclusory fashion that an agreement existed without alleging

its terms, identifying the provision breached, or showing how the relationship gave rise to an implied duty to indemnify. Etiwanda contends University alleges no facts showing the claimed damages were a foreseeable consequence of any breach, resting instead on conclusory labels that Etiwanda's conduct was "careless and negligent" and "active and primary." Etiwanda argues that because it is a public entity, the claim must be pleaded with particularity, and conclusory allegations cannot impose liability. Etiwanda finally argues that the Cross-Complaint does not allege when or how the agreement was made, its material terms, or the specific breach, so the first cause of action fails to state sufficient facts.

In opposition, University argues that its dismissal of Plaintiff from the master's program was based on Etiwanda's representations about Plaintiff's internship performance, that the program dismissal flowed directly from the internship dismissal, and that University is therefore entitled to indemnity from Etiwanda. University argues that Etiwanda's contention that University failed to set forth the terms of the parties' agreement is answered because those terms are contained in the fieldwork agreement attached as Exhibit 2 to the Autrey declaration. University contends that the contractual indemnity claim has not yet accrued and that the equitable indemnity claim was tolled until University discovered the grounds for the claim through Plaintiff's October 28, 2025 discovery responses. University maintains that Plaintiff's complaint made no allegations against Etiwanda and thus did not put University on notice of its cross-claims.

In reply, Etiwanda contends that equitable indemnity requires a shared or joint legal obligation to the injured party, that it is wholly derivative such that there can be no indemnity without an underlying liability, and that implied contractual indemnity is simply a form of equitable indemnity subject to the same joint liability requirement. Etiwanda argues the California Supreme Court rejected University's theory in *Prince*, cautioning that indemnity cannot transform a breach of contract claim into a vehicle for recovering tort damages. Etiwanda contends Plaintiff seeks to hold University liable for duties unique to University, its catalog and handbook promises, its own dismissal procedures, and its failure to investigate before dismissing Plaintiff, not duties shared with Etiwanda. Etiwanda argues the Cross-Complaint alleges only that Etiwanda terminated the internship and communicated performance information on which University relied, which establishes at most that University incurred liability from its own decisions rather than a common legal obligation. Etiwanda contends the "careless" and "primarily responsible" allegations are legal conclusions unsupported by facts establishing shared liability.

The Court finds the Cross-Complaint fails to allege sufficient facts to state a cause of action for implied/partial indemnity. First, the Cross-Complaint fails to allege any facts indicating a contractual relationship between University and Etiwanda for purposes of implied contractual indemnity. (Cross-Complaint, ¶¶ 1-10.) Second, the Cross-Complaint alleges no facts indicating a joint legal obligation between University and Etiwanda to Plaintiff, nor does the Second Amended Complaint allege facts showing a joint legal obligation to Plaintiff. (See Cross-Complaint, ¶¶ 1-10; see generally, Second Amended Complaint.) Additionally, the purported contract attached to James Autrey's declaration is beyond the scope of this Demurrer since it is not alleged in the Cross-Complaint or a document of which the Court has taken judicial notice. (*Blank v. Kirwan*, supra, 39 Cal.3d at p. 318; *Donabedian*, supra, 116 Cal.App.4th at p. 994.)

Based on the foregoing, the Court SUSTAINS Etiwanda's Demurrer to the First Cause of Action.

Second Cause of Action - Contribution

There are two bases for a contribution claim, i.e., statutory or equitable. To state a claim for statutory contribution, the plaintiff must allege facts demonstrating a money judgment rendered jointly against two or more defendants in a tort action, one of the tortfeasors has by payment discharged the joint judgment or paid more than their pro rata share of the joint judgment, and the claimant must not be an intentional tortfeasor. (Civ. Code, § 875, subs. (a), (c)-(d).) To state a claim for equitable contribution, the plaintiff must allege facts demonstrating a joint or joint and several obligation, payment of more than one's proportionate share, the co-obligors share the same level of liability on the same risk to the same principal. (*Morgan Creek Residential v. Kemp* (2007) 153 Cal.App.4th 675, 684.)

Etiwanda demurs to the Cross-Complaint's Second Cause of Action for contribution on the grounds that it fails to state facts sufficient to constitute a cause of action and on the grounds that it is uncertain. Etiwanda argues that California recognizes contribution in two contexts, first under Code of Civil Procedure section 875, which provides a right among joint tortfeasors jointly and severally liable for the same injury, and second under Civil Code section 1432 and Code of Civil Procedure sections 881 through 883, which provide contribution among parties jointly liable on the same obligation. Etiwanda contends

the key requirement is that the parties be jointly liable on the same obligation, i.e., sharing liability to the same creditor under the same contract or for the same tort. Etiwanda argues that where defendants are not obligors on the same contract, their obligations are neither joint nor joint and several and give rise to no right of contribution, and the fact that multiple parties' conduct contributed to a breach does not create joint liability. Etiwanda asserts that Because Plaintiff's claims against University arise from University's own contractual obligations, Code of Civil Procedure section 875 has no application and University may assert contribution only if the parties are jointly liable on the same contractual obligation. Etiwanda contends they are not, and that no such joint liability is alleged, so this claim fails.

University's Opposition does not separately address the contribution cause of action, and Etiwanda's reply also does not address the Second Cause of Action for contribution.

The Court finds the Cross-Complaint fails to allege sufficient facts to state a cause of action for contribution. First, the Cross-Complaint fails to allege the existence of a judgment for which University and Etiwanda are both liable to Plaintiff or that University paid more than its share under such a judgment for purposes of statutory contribution. (See Cross-Complaint, ¶¶ 1-6, 11-12; Civ. Code, § 875; *River Garden Farms, Inc. v. Superior Ct.* (1972) 26 Cal.App.3d 986, 992 ["The contribution statutes establish no right of contribution before judgment, but only a right of contribution among joint judgment debtors"].)

Second, the Cross-Complaint fails to allege facts indicating the existence of a joint obligation between University and Etiwanda, University's payment of more than its pro rata share of that joint obligation, or facts showing that University and Etiwanda share the same level of liability. (See Cross-Complaint, ¶¶ 1-6, 11-12; *Morgan Creek Residential v. Kemp*, supra, 153 Cal.App.4th at p. 684.)

Finally, the Court construes University's lack of opposition regarding the Second Cause of Action as a concession that Etiwanda's arguments are meritorious. (*D.I. Chadbourne, Inc. v. Superior Court* (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].)

Based on the foregoing, the Court SUSTAINS Etiwanda's Demurrer to the Second Cause of Action.

CONCLUSION

The Court SUSTAINS Cross-Defendant Etiwanda School District's Demurrer to the Cross-Complaint. The Court will hear from the parties whether leave to amend should be granted.

Cross-Defendant Etiwanda School District is ordered to give notice of the Court's ruling within five calendar days of this order.

[1] The Court notes no proof of service on file for the Second Amended Complaint. But, University filed a declaration in support of an automatic extension for a demurrer to the Second Amended Complaint on December 11, 2024, and did demur to the Second Amended Complaint on January 16, 2025, so Plaintiff clearly served the Second Amended Complaint around that time. (See Declaration of Demurring Party in Support of Automatic Extension (12/11/24); Demurrer (1/16/25).)